

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Nicholas Venduras	Team: Squad #16	CCRB Case #: 202105455	☒ Force	☒ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Sunday, 09/05/2021 2:56 AM	Location of Incident: Rear of § 87(2)(b)	18 Mo. SOL 3/5/2023	Precinct: 28		
Date/Time CV Reported Sun, 09/05/2021 5:12 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 09/13/2021 10:48 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Jeff Huggins	19201	947089	PSA 5
2. POM John Peloso	18172	968704	PSA 5
3. LT Jose Ramos	05331	946704	032 PCT
4. POM Kevin Salazar	30098	967317	PSA 5
5. PO Trimone Grant	16323	967906	MED DIV

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Auckley Crooks	04727	938291	PSA 5
2. PO Rodney Jiles	03750	921443	PSA 5
3. PO Meagan Morea	12735	966231	PSA 5
4. PO Afreen Bedi	30256	966957	PSA 5
5. PO Artur Espenberg	24642	952713	PSA 5
6. PO Camile Martinez	12443	970683	PSA 5
7. PO Daniela Rodriguez	17041	964248	028 PCT
8. PO David Wilczewski	24071	963333	PSA 5
9. PO Imdadul Chowdhury	19180	966508	PSA 5
10. PO Otilio Penacabreja	09184	944241	028 PCT
11. PO Ricardo Torres	01442	965574	PSA 5
12. SGT Oscar Wdowiak	00853	951424	H INV U
13. PO Amela Dzihic	31626	965064	PSA 5
14. PO Allyssa Byrus	19105	960095	PSA 5
15. PO Clement Augustin	13223	960183	PSA 5
16. PO Kyle Mondesir	13466	960957	PSA 5
17. LT Johendi Sanchez	00000	938184	PSA 5

Officer(s)	Allegation	Investigator Recommendation
A . PO Trimone Grant	Force: Police Officer Trimone Grant used a non-lethal restraining device on an individual.	A . Exonerated
B . POM Jeff Huggins	Discourtesy: Police Officer Jeff Huggins spoke discourteously to § 87(2)(b)	B . Miscellaneous
C . POM Jeff Huggins	Force: Police Officer Jeff Huggins used physical force against § 87(2)(b)	C . Exonerated

Officer(s)	Allegation	Investigator Recommendation
D . POM Kevin Salazar	Force: Police Officer Kevin Salazar used physical force against § 87(2)(b)	D . Exonerated
E . LT Jose Ramos	Force: Sergeant Jose Ramos used physical force against § 87(2)(b)	E . Exonerated
F . POM John Peloso	Force: Police Officer John Peloso used physical force against § 87(2)(b)	F . Substantiated

Case Summary

On September 5, 2021, Lieutenant Johendi Sanchez of PSA 5 filed this complaint via telephone with IAB stating § 87(2)(b) made allegations of excessive force against NYPD officers during his arrest. It was assigned IAB log § 87(2)(b) CCRB received this case on September 13, 2021 and was assigned case number § 87(2)(b).

On September 5, 2021, at about 2:56 AM, § 87(2)(b) and other civilians were in the rear courtyard of § 87(2)(b) § 87(2)(b) at § 87(2)(b) in Manhattan when an argument broke out between § 87(2)(b) cousin and two unknown males. § 87(2)(b) attempted to separate them at about the same time Police Officer Timone Grant, Police Officer Afreen Bedi, and Police Officer Meagan Morea from PSA 5 arrived.

PO Grant used a Conducted Electrical Weapon (CEW) in probe-mode on an unknown male who fought § 87(2)(b) cousin; however this individual ran away and was not seen again (**Allegation A: Force, Exonerated**).

Sergeant Jose Ramos, Police Officer Jeff Huggins, Police Officer Kevin Salazar, Police Officer John Peloso, and other officers from PSA 5 arrived on scene. § 87(2)(b) pushed his cousin towards a nearby metal fence and held him against it with his body. PO Huggins allegedly tried to grab § 87(2)(b) wrist, but § 87(2)(b) pulled it away and they began to argue and swear at each other (**Allegation B: Discourtesy, Misc. – Subject Suspended without Pay**). PO Huggins, PO Salazar, and Sgt. Ramos grabbed § 87(2)(b) and forcefully pulled him away from the fence he was holding to handcuff him (**Allegation C-E: Force, Exonerated**). While PO Huggins, PO Salazar and Sgt. Ramos attempted to handcuff § 87(2)(b) PO Peloso punched § 87(2)(b) in the face (**Allegation F: Force, Substantiated**). This caused § 87(2)(b) to fall to the ground where he sustained cuts and bruises on his face. Officers then handcuffed and arrested him for resisting arrest, obstruction of governmental administration, aggravated harassment, and disorderly conduct (**Board Review 1**).

Since this incident, Sgt. Ramos was promoted to Lieutenant. During the CCRB investigation, PO Huggins was suspended without pay with no return date (**Board Review 2**). It is unknown if he was suspended as a result of this incident.

The NYPD Legal Department provided 21 Body-Worn Camera (BWC) videos in regards to this incident (**Board Review 3**).

Findings and Recommendations

Allegation (A) Force: Police Officer Trimone Grant used a non-lethal restraining device on an individual.

§ 87(2)(b) provided a statement on September 23, 2021 (**Board Review 4**). At approximately 3:00 AM on September 5, 2021, § 87(2)(b) his cousin, and other acquaintances were outside of § 87(2)(b) § 87(2)(b) called the § 87(2)(b) in a central courtyard near a basketball court. § 87(2)(b) admitted they were somewhat intoxicated after being there for at least two hours drinking alcohol during a celebration event.

§ 87(2)(b) did not provide contact information or the full names of these other civilians, so the investigation was unable to obtain statements from them.

§ 87(2)(b) walked across the complex towards 115th Street to meet another friend (**Board Review 4**). As they rejoined the rest of the group, § 87(2)(b) saw an unknown Black male, about 20 years-old, on a bike who appeared intoxicated due to his slurred speech and unsteady slow way of walking. This male and another unknown male approached § 87(2)(b) cousin and attempted to punch him. § 87(2)(b) separated his cousin from the two other men, but his cousin was still willing to fight, so § 87(2)(b) then fully isolated his cousin from the group by pushing him towards a nearby fence.

At about the same time, PO Grant and PO Bedi ran over (**Board Review 4**). While § 87(2)(b) pushed his cousin towards the fence, he had his back to the officers, but he heard the sound of a taser being used. When he turned, he saw PO Grant pointing her CEW at the male with the bike, but he did not see her using it against him. § 87(2)(b) informed PO Grant that the fight ended and that it was unnecessary to tase the male. § 87(2)(b) wanted to safely separate his cousin from everyone, so he restrained him by wrapping his arms around him while holding onto the railing, creating a U-shape with his arms. In this position, § 87(2)(b) had his back to the group with his cousin facing him. His cousin told him he was fine, but § 87(2)(b) could tell he was still agitated, so he repeatedly told him to calm down and stay in place.

PO Grant provided a statement to the CCRB on March 11, 2022 (**Board Review 5**). At the time of this incident, while assigned as meal relief for other MOS, PO Grant was inside a parked van near § 87(2)(b) in Manhattan with PO Bedi and PO Morea. They heard a commotion coming from a courtyard in the building complex about 50 feet away and ran towards it. When she reached the courtyard a few seconds later, PO Grant saw two men fighting on the ground. PO Grant told them multiple times to stop and separate or else they would be tased, causing them to stop fighting and get up, but then one of these men started punching the other civilian again. At that point, PO Grant deployed her CEW at him, but he ran away and was not seen again. She chose to use a taser since it was non-lethal force and needed to ensure the civilian's compliance. PO Grant thought her actions were necessary since the men did not comply with her instructions to stop fighting. At one point, PO Bedi called for additional units who arrived to assist with crowd control.

PO Grant's BWC generally supports her testimony (**Board Review 6**). It begins with PO Grant in the driver seat of an NYPD van, but at timestamp 0:18, she quickly gets up and exits the vehicle. At least three men are fighting on the ground at timestamp 0:39. At timestamp 0:42, § 87(2)(b) cousin is on top of and punching a male in a white shirt lying on his back. At timestamp 0:48, PO Grant is about two or three feet from them. With a clear and direct angle, she aims her taser at the two men on the ground. § 87(2)(b) then pulls his cousin off the other man and puts him in a bearhug from behind to get him on his feet and moves him backward. At that point, the male in the white shirt immediately gets up, chases after § 87(2)(b) cousin, and continues fighting.

At timestamp 0:53, PO Grant points her taser directly towards the back of the male wearing the white shirt and deploys the taser (**Board Review 6**). After being tased, the male runs away at timestamp 0:58 towards the left side of the frame.

According to Patrol Guide 221-08, a Conducted Electrical Weapon (CEW) should only be used when a person is actively resisting or exhibiting active aggression, or to prevent that person from injuring themselves or others (**Board Review 7**). A CEW may not be used in situations not requiring the use of physical force.

As BWC video shows, the unidentified civilian was initially fighting with § 87(2)(b) cousin on the ground upon the officers' arrival and he continued to go after § 87(2)(b) cousin after he

was pulled away. Given that the male continued fighting after § 87(2)(b) pulled his cousin away, it is undisputed that the male was exhibiting active aggression. § 87(2)(g)

It is therefore recommended **Allegation A** be closed as **Exonerated**.

Allegation (B) Discourtesy: Police Officer Jeff Huggins spoke discourteously to § 87(2)(b)

Allegation (C) Force: Police Officer Jeff Huggins used physical force against § 87(2)(b)

Allegation (D) Force: Police Officer Kevin Salazar used physical force against § 87(2)(b)

Allegation (E) Force: Sergeant Jose Ramos used physical force against § 87(2)(b)

Allegation (F) Force: Police Officer John Peloso used physical force against § 87(2)(b)

§ 87(2)(b) said while he was holding his cousin against the fence, a Black male officer in his late 30s or early 40s, identified via the investigation as PO Huggins, grabbed his right wrist from his right side without saying anything (**Board Review 4**). § 87(2)(b) immediately pulled his hand away and returned to his position holding his cousin. He told PO Huggins he did nothing wrong and to not touch him. He and PO Huggins then engaged in a verbal argument.

A female acquaintance then got behind § 87(2)(b) and held onto him but he tried to shrug her off, telling her to let go (**Board Review 4**). At that point, PO Salazar and Sgt. Ramos grabbed § 87(2)(b) from behind. He felt officers grab his arms and other officers grab his ankles. § 87(2)(b) was unsure of the exact mechanics, but someone pulled his ankles from under him, and he somehow turned around. § 87(2)(b) then fell forward to the ground while officers still held him. As he was falling, PO Peloso punched him in the face and when he landed on the ground, his face struck the concrete and the officers jumped on his back. They knelt on him to handcuff him which they did easily since § 87(2)(b) hands were already behind him and he could not move since so many officers were on him.

He was slightly dazed from the punch and the slam to the ground (**Board Review 4**). The injuries he sustained from this part of the incident included abrasions above and below his left eye, his nose, his upper lip, and the top of his right hand near his wrist. § 87(2)(b) took photographs when he was released on September 6, 2021, and he provided these photographs which show his injuries to the CCRB (**Board Review 8**). These photos are consistent with § 87(2)(b) descriptions of his injuries. Additionally, his arrest photo shows a bandage under his left eye (**Board Review 9**).

At the PSA 5 stationhouse, EMS examined § 87(2)(b) before taking him to the hospital for approximately an hour saying his small cuts were superficial. § 87(2)(b)

The arrest report by PO Salazar included a note in the narrative stating, he observed § 87(2)(b) “engaging in violent behavior” and “causing annoyance and alarm” (**Board Review 1**). It goes on to say § 87(2)(b) slapped one of the officer’s hands and backed another into a fence, causing the officer to fear for his safety which resulted in officers taking him to the ground. It also indicates § 87(2)(b) flared his arms in an attempt to prevent officers from handcuffing him. The same information is in the UF-61, also prepared by PO Salazar (**Board Review 12**).

As stated above, the Department of Advocates Office (DAO) confirmed that PO Huggins was

unable to provide a statement to the CCRB as he was suspended without pay during this investigation (**Board Review 2**).

PO Salazar provided a statement to the CCRB on December 15, 2022 (**Board Review 13**). He and his partner, PO Chowdhury, received a radio call from PO Bedi asking for assistance, which sounded urgent from the tone of his voice. Upon arrival, PO Salazar saw about 10 or 15 people around the officers who called for help. § 87(2)(b) who appeared intoxicated due to his incoherent way of speaking, was screaming “Don’t touch me! Get off of me! Get off of me! Why are you trying to touch me?” at PO Morea, but PO Salazar could not tell if there was any physical contact between the two. PO Salazar could not recall where the other officers were positioned as he was focused on § 87(2)(b).

§ 87(2)(b) aside from being about three inches taller than PO Salazar and very strong, was loud and disorderly, so PO Salazar attempted to deescalate the situation by trying to get § 87(2)(b) to focus on him (**Board Review 13**). PO Salazar said, “Calm down. Hey, talk to me, I can listen to you.” § 87(2)(b) did not calm them and was wagging his fingers no more than three inches from PO Salazar’s face.

PO Huggins subsequently approached § 87(2)(b) and grabbed one arm while PO Salazar grabbed § 87(2)(b) other forearm, but he could not remember which arm (**Board Review 13**). PO Salazar believed that PO Huggins was the first to make physical contact with § 87(2)(b). § 87(2)(b) flailed his arms and his legs, which made it difficult for officers to handcuff him and arrest him for disorderly conduct. PO Salazar could not recall if § 87(2)(b) was doing anything else with his body.

At one point, officers took § 87(2)(b) to the ground and PO Salazar attempted to restrain his legs so he would not hurt himself or others (**Board Review 13**). PO Salazar did not know which officers assisted with handcuffing § 87(2)(b) but he released his hold of § 87(2)(b) once officers said § 87(2)(b) was handcuffed.

PO Salazar did not recall if any officers ever used hand strikes against § 87(2)(b) nor did he remember seeing PO Peloso on scene (**Board Review 13**). He did not hear any officers use profanity such as the alleged “who the fuck” question or any argument between § 87(2)(b) and PO Huggins or PO Chowdhury. PO Salazar denied having such argument with § 87(2)(b). He knew § 87(2)(b) went to the hospital, but he did not know why.

Sgt. Ramos provided a statement to the CCRB on November 15, 2022 (**Board Review 14**). When he received a radio call for assistance related to the disorderly group, he could hear yelling and screaming in the background, indicating the situation was urgent. Upon arrival, aside from PO Bedi, PO Huggins, and PO Salazar, Sgt. Ramos did not recall which other officers were present. Sgt. Ramos was the highest-ranking officer on scene.

Sgt. Ramos saw § 87(2)(b) holding a female civilian against a fence who was crying for help and appeared to be in distress based on her body language and high volume (**Board Review 14**). Sgt. Ramos did not recall what she said, but remembered her arms were up in the air and she looked like she could not breathe due to how § 87(2)(b) had her pinned. PO Huggins and PO Salazar were at the fence too, but Sgt. Ramos could not recall their positions or what they were doing. Since the woman appeared in need of assistance, Sgt. Ramos ran to them to pull her away from § 87(2)(b) by her hand but § 87(2)(b) who was heavy-set, strong, and taller than Sgt. Ramos, did not let him pull her away as he had what Sgt. Ramos described as a “death grip” on the fence. At that point, Sgt. Ramos gave him verbal instructions to let her go saying something to the effect of,

“Release her.”

When § 87(2)(b) did not comply, Sgt. Ramos grabbed his right forearm to pull it off the fence (**Board Review 14**). Other officers may have pulled on § 87(2)(b) as well, but Sgt. Ramos could not recall exactly what they were doing since Sgt. Ramos was so focused on § 87(2)(b) and the female civilian. Sgt. Ramos only tried to pull § 87(2)(b) away and did not use any hand strikes or additional force.

During this struggle to get § 87(2)(b) away from the fence, § 87(2)(b) moved in a way which caused Sgt. Ramos to fall and injure his groin (**Board Review 14**). The pain was so disorienting Sgt. Ramos disengaged from § 87(2)(b) and the group of officers. He was unsure if § 87(2)(b) also fell. All Sgt. Ramos could remember after his injury was looking for his BWC which had fallen off and for someone to call an ambulance. Sgt. Ramos went to the hospital directly from the scene and the injury caused Sgt. Ramos to take a few weeks off and go to physical therapy.

§ 87(2)(b) was arrested and taken back to the stationhouse, but Sgt. Ramos did not recall how or who made the decision to arrest him (**Board Review 14**). He acknowledged there was lots of screaming, but he did not hear PO Huggins and § 87(2)(b) get into an argument about “who the fuck” each thought they were, nor did he recall seeing PO Peloso punch § 87(2)(b).

PO Peloso provided a statement to the CCRB on February 23, 2022 (**Board Review 15**). He, Sgt. Ramos, and Police Officer Artur Espenberg, also of PSA 5, heard a female officer, either PO Bedi or PO Morea, screaming over the radio requesting help from additional units. PO Peloso could hear chaotic sounds of people screaming and fighting in the background. As they approached § 87(2)(b) complex, PO Peloso heard more screaming and drove toward the sound in the main basketball court § 87(2)(b), near the rear of § 87(2)(b). Upon arrival, he saw a total of about 15 or 20 civilians and about 10 officers. These officers and civilians were arguing loudly, which contributed to the chaotic nature of the incident. PO Peloso did not know what the issue was, nor did he recognize any civilians.

PO Peloso saw PO Salazar at a fence arguing with § 87(2)(b) who made large, aggressive, pointing motions very close to the officer’s face (**Board Review 15**). PO Peloso thought § 87(2)(b) gestures were taunting, and it appeared he was going to punch PO Salazar. § 87(2)(b) looked much stronger than PO Salazar and PO Salazar appeared to be afraid. About five or six officers, including PO Huggins, were trying to arrest § 87(2)(b). PO Peloso and his partners attempted to assist in handcuffing § 87(2)(b) but he was resisting arrest.

§ 87(2)(b) resisted arrest by firmly holding onto the fence PO Salazar was pinned against, but when officers moved § 87(2)(b) away from the fence, § 87(2)(b) swung his arms, threw his elbows, and kicked his legs to get the officers off him (**Board Review 15**). PO Peloso used one closed-fist hand strike to § 87(2)(b) face which he described as the “minimal force needed” to gain control of him. PO Peloso reasoned since officers had already tried to grab him and were struggling with him, this use of force was necessary. § 87(2)(b) then fell face first to the ground and stopped resisting, which allowed PO Peloso and other officers to grab his arms and handcuff him. Sgt. Ramos injured his groin during this struggle.

Once handcuffed, other officers transported § 87(2)(b) back to the stationhouse (**Board Review 15**). PO Peloso went to the hospital due to Sgt. Ramos’ injuries and he did not see § 87(2)(b) again.

PO Grant remembered § 87(2)(b) got too close to one of the officers’ faces and was

subsequently arrested for not complying with instructions (**Board Review 5**). However, she was not focused on the arrest because she was off to the side and looking for her discharged taser cartridge to voucher it. She could not provide any details as to how § 87(2)(b) was arrested or how officers took him to the ground. Once § 87(2)(b) was arrested, PO Grant left the scene.

In his August 25, 2022, interview, PO Chowdhury said he did not remember what other officers were doing because he was focused on crowd control (**Board Review 16**). He did not recall officers striking anyone or even if PO Peloso was there.

PO Huggins' BWC shows him following PO Salazar, a heavy-set Hispanic male with light skin complexion and low-cut hair, from their RMP to the incident location beginning at timestamp 0:17 (**Board Review 17**). PO Salazar appears to be the first assisting officer to get to § 87(2)(b) a muscular Black male in a white or gray t-shirt and dark baseball hat, the other civilians near the fence, and PO Morea. § 87(2)(b) is not gripping the fence at that point. At timestamp 0:23, PO Salazar appears to have his arm around § 87(2)(b) waist, and they are about one foot or less away from the fence, but within one second § 87(2)(b) moves to the fence and § 87(2)(b) female acquaintance has her arms wrapped around him. At timestamp 0:32, § 87(2)(b) turns, and the female civilian goes with him and gets pushed against the fence. At timestamp 0:33, PO Salazar grabs hold of § 87(2)(b) upraised right wrist. § 87(2)(b) shakes his pointed finger and appears to be yelling at PO Salazar while he holds his wrist, however, audio is not captured at this point in the BWC. PO Huggins gets closer, and the female civilian remains between PO Salazar and § 87(2)(b). By timestamp 0:48, PO Huggins is next to § 87(2)(b) and PO Salazar. It is unclear what happens after because PO Huggins' BWC becomes unfocused.

At timestamp 1:05, the officers appear to have pulled § 87(2)(b) away from the fence (**Board Review 17**). While the footage is often unclear, § 87(2)(b) legs can be seen standing until approximately timestamp 1:15. At that point a female voice can be heard screaming and at timestamp 1:19, § 87(2)(b) appears to be on the ground.

Sgt. Ramos's BWC begins with him running through the § 87(2)(b) courtyard to a group of civilians and officers at timestamp 0:16 (**Board Review 18**). At timestamp 0:22, he grabs the female civilian's left wrist as § 87(2)(b) grips the fence before he takes hold of § 87(2)(b) right forearm. The female civilian's left hand is up near her face. At that point the video gets shaky, and the action is unclear until timestamp 0:41 when it lands on the ground face-up under a group of officers. These officers stand in a huddle-like formation trying to handcuff § 87(2)(b). The officers appear to gain control at timestamp 0:49 and at timestamp 0:54 Sgt. Ramos reattaches his BWC to his chest, but it is upside-down until timestamp 0:59.

The two best angles to see the group of officers around § 87(2)(b) are taken from PO Espenberg and PO Peloso's BWC, because the videos described above are obscured by bodies and are unsteady due to the struggle between officers and § 87(2)(b).

PO Espenberg's BWC shows him running up to the fence behind PO Peloso where PO Salazar, PO Huggins, and Sgt. Ramos are trying to pull § 87(2)(b) off it (**Board Review 19**). The female civilian can be seen pressed against the fence at timestamp 0:59. At timestamp 1:03, PO Peloso moves to the right side of the group and appears to pull § 87(2)(b) away from the fence by the arm and the group moves towards the center of the courtyard. PO Salazar, PO Huggins, and Sgt. Ramos appear to be gripping his arms and shoulder area.

At timestamp 1:07, PO Peloso makes an uppercut punching motion, but PO Huggins and Sgt. Romero somewhat obscure the point of impact; however it is clear from what is visible that PO

Peloso punched § 87(2)(b) in the head or face area (**Board Review 19**). § 87(2)(b) appears to then fall to the ground and the officers get on the ground with him. At that point, PO Espenberg steps towards another civilian and turns away from the arrest.

PO Peloso's BWC shows this punch from his position within the first 10 seconds (**Board Review 20**). At timestamp 0:01, § 87(2)(b) can be seen holding onto the fence and pinning his female acquaintance against it surrounded by PO Salazar, PO Huggins, and Sgt. Ramos. PO Salazar has his right hand on § 87(2)(b) right shoulder and PO Ramos is gripping his right wrist which is holding the fence. At timestamp 0:02, PO Peloso takes hold of § 87(2)(b) right arm and pulls him away from the fence at timestamp 0:04. At timestamp 0:05, § 87(2)(b) left fist can be seen at his chest while officers attempt to control his movements. At timestamp 0:06, PO Peloso's BWC pans away from § 87(2)(b) and follows the movement of PO Peloso's right arm. PO Peloso brings his right fist down and outside the view of the BWC. At timestamp 0:07, PO Peloso swings his right fist up and punches the left side of § 87(2)(b) mouth. At that point, § 87(2)(b) drops to the ground, followed by the other officers who then handcuff § 87(2)(b).

PO Salazar said he did not have any video footage because his BWC did not charge (**Board Review 13**).

No BWC footage shows PO Huggins using profanity towards § 87(2)(b).

§ 87(2)(g)

it is therefore recommended **Allegation B** be closed as **Misc.** – **Subject Suspended without Pay.**

Patrol Guide Procedure 221-01 instructs officers that “force may be used when it is reasonable to ensure the safety of a member of the service or a third person...or when it is reasonable to place a person in custody or to prevent escape” (**Board Review 23**). Additionally, “MOS will use only the reasonable force necessary to gain control or custody of a subject,” and are prohibited from using “any level of force on handcuffed or otherwise restrained subjects unless necessary to prevent injury, escape or to overcome active physical resistance or assault.” In determining whether the use of force is reasonable, member of the service should consider the nature and severity of the crime/circumstances, actions taken by the subject, duration of action, immediacy of perceived threat or harm to subject, members of service, and/or bystanders, whether the suspect is actively resisting custody, whether the subject is attempting to evade arrest by flight, size, age, and condition of the subject in comparison to the MOS.

Statements made by § 87(2)(b) and the officers, as well as video evidence clearly show Sgt. Ramos, PO Salazar, PO Huggins, and PO Peloso pulled § 87(2)(b) away from the fence in an attempt to arrest him. § 87(2)(g)

§ 87(2)(b) BWC shows he was physically resistant to being moved and held onto the fence which made it difficult for the officers to restrain him. § 87(2)(g)

§ 87(2)(g) Therefore, it is recommended **Allegations C-E** be closed as **Exonerated**.

While it is undisputed § 87(2)(b) was resisting the officers as they tried to control his movements, the officers successfully overcame some of his resistance when they pulled him off the fence. Although there were several bystanders around, they never interfered with the officers' actions, there were at least four officers holding § 87(2)(b) and there were additional officers in the immediate area. § 87(2)(g)

It is therefore recommended **Allegation F** be closed as **Substantiated**.

Civilian and Officer CCRB Histories

- § 87(2)(b)
§ 87(2)(b)
■ § 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
- Sergeant Jose Ramos has been a member of service for 14 years and has been the subject in nine other CCRB complaints and 13 other allegations, one of which was substantiated (**Board Review 25**):
 - 201014287 involved a substantiated allegation of a stop against Sgt. Ramos. The Board recommended charges and the NYPD imposed instructions. § 87(2)(g)
- Police Officer Trimone Grant has been a member of service for three years and has been the subject in two other CCRB complaints and three other allegations, one of which was substantiated (**Board Review 26**):
 - 202105540 involved a substantiated allegation of a refusal to provide shield number against PO Grant. The Board recommended formalized training and the NYPD has yet to impose discipline. § 87(2)(g)
- Police Officer Kevin Salazar has been a member of service for three years and has been the subject in one other CCRB complaint and six other allegations, none of which were substantiated (**Board Review 27**). § 87(2)(g)
- Police Officer Jeff Huggins has been a member of service for 14 years and has been the subject in five other CCRB complaints and 14 other allegations, none of which were substantiated (**Board Review 28**). § 87(2)(g)
- Police Officer John Peloso has been a member of service for three years and has been the subject in five other CCRB complaints and 14 other allegations, none of which were substantiated (**Board Review 29**). § 87(2)(g)

Mediation, Civil, and Criminal Histories

- This case was not suitable for mediation.
- § 87(2)(b) filed a Notice of Claim with the City of New York claiming false imprisonment; false arrest; excessive detention; assault; battery; trespass on the person; abuse of process; malicious prosecution; intentional infliction of emotional distress; negligent infliction of emotional distress; negligence; negligent hiring, screening, retention, supervision, and/or training; violation(s) of New York Criminal Procedure Law § 150.20; violation(s) of his rights pursuant to the Constitution of the State of New York, including, but not limited to, Article I, Sections 6 (due process and right to counsel), 11 (equal protection), and 12 (unlawful search and seizure) thereof; denial or delay of medical care and/or medication (including in violation of New York Civil Rights Law Section 28); violation(s) of New York Criminal Procedure Law §§ 160.50 and 160.55; bias-based profiling and/or unlawful discriminatory practices in violation of the New York City Community Safety Act of 2013 (Local Law 71); violation(s) of the New York State Human Rights Law; violation(s) of the New York City Human Rights Law; and/or violation(s) of the New York State Civil Rights Law and seeking an undetermined amount of money as redress (**Board Review 30**). There is no 50H hearing scheduled.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Squad: 16

Investigator:	<u>Nick Venduras</u> Signature	<u>Inv. Nicholas Venduras</u> Print Title & Name	<u>Jan 9, 2023</u> Date
Squad Leader:	<u>Patrick Yu</u> Signature	<u>IM Patrick Yu</u> Print Title & Name	<u>01/09/2023</u> Date
Reviewer:	<u></u> Signature	<u></u> Print Title & Name	<u></u> Date